Dandridge v. *Williams*, 397 U. S. 471, 475, n. 6 (1970). The Court's failure actually to resolve whether Alabama may continue to collect its tax, see *ante*, at 882, n. 10, is all the more baffling, since appellants took the exceptional step of conceding the factual issues to assure a speedy resolution of numerous pending lawsuits disruptive of industry stability. See Brief for State of Alaska et al. as *Amici Curiae* 1–2. Our precedents do not condone such a miserly approach to review of statutes adjusting economic burdens. See, *e. g.*, *Allied Stores of Ohio, Inc.* v. *Bowers*, *supra*, at 528–529; *McGowan* v. *Maryland*, 366 U. S. 420, 425 (1961); *United States* v. *Carolene Products Co.*, 304 U. S. 144, 152–153 (1938); *Borden's Farm Products Co.* v. *Baldwin*, 293 U. S. 194, 209 (1934). The Court has consistently reviewed the validity of such statutes based on whatever "may reasonably have been the purpose and policy of the State Legislature, in adopting the proviso." *Allied Stores of Ohio, Inc.* v. *Bowers*, *supra*, at 528–529. It is to that inquiry that I now turn.

Appellees claim that Alabama's insurance tax, in addition to raising revenue and promoting investment, promotes the formation of new domestic insurance companies and enables them to compete with the many large multistate insurers that currently occupy some 75% to 85% of the Alabama insurance market. App. 80. Economic studies submitted by the State document differences between the two classes of insurers that are directly relevant to the well-being of Alabama's citizens. See *id.*, at 46–129. Foreign insurers typically concentrate on affluent, high volume, urban markets and offer standardized national policies. In contrast, domestic insurers such as intervenors American Educators Life Insurance Company and Booker T. Washington Life Insurance Company are more likely to serve Alabama's rural areas, and to write low-cost industrial and burial policies not offered by the larger national companies.[1] Additionally, appellees argue

[1] "Industrial insurance" is the trade term for a low face-value policy typically sold door-to-door and maintained through home collection of monthly